

		awarded to Plaintiff Terry Joy, by and through his Attorney in Fact Vickie Joy; and • Cash Payments totaling \$1,684,400 to be made to Eligible Class Members in accordance with the Settlement Agreement, based upon the final claim numbers as attested to by the administrator in ROA #308 at ¶ 5 and Exhibit 4: ○ \$673,250 to 2,693 current residents; ○ \$995,400 to 4,424 for living former residents; and ○ \$15,750 to 126 successors to decedents. Within five (5) court days, Class Counsel must submit a revised Proposed Order Granting Motion for Attorneys’ Fees, Costs, and Service Awards that incorporates the specific awards and disbursements in the amounts set forth in this minute order. Final Accounting is set for December 2, 2027, at 2:00 p.m. in Department CX102. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement. The final report should also include an update on the implementation of the Staffing Contract. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs are ordered to give notice of this ruling to Defendants and file proof of service within five (5) court days of this ruling. Plaintiffs are also ordered to give Defendants notice of entry of the Final Approval Order and Judgment and the Order Granting Motion for Attorneys’ Fees, Costs, and Service Awards within five (5) court days of entry of those orders.
110	Penaloza vs. OC Dough, Inc. 2020-01122070	1. Motion to Vacate re Arbitration Award 2. ADR Review Hearing The motion of plaintiff Efrain Penaloza for an order vacating the award issued by the arbitrator on November 9, 2025 and the arbitrator’s order granting defendant’s motion for summary judgment is DENIED. Plaintiff Efrain Penaloza moves under Code Civ. Proc. §§ 1286.2 and 1286.6 for an order vacating the arbitration award issued by the arbitrator on November 9, 2025 as well the arbitrator’s order granting defendant’s motion for summary judgment. Defendant OC Dough, Inc., opposes the motion. Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. Code Civ. Proc. § 1985. The petition must name as respondents all parties to the arbitration award and may name as respondents any other persons bound by the arbitration award. Code Civ. Proc. § 1985. A petition to confirm, correct, or vacate an arbitration award must: (a) set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an

agreement; (b) set forth the names of the arbitrators; and (c) set forth or have attached a copy of the award and the written opinion of the arbitrators, if any. Code Civ. Proc. § 1985.4.

Although they are not identified in plaintiff's notice of motion, plaintiff submitted the order granting defendant's motion to compel arbitration and the arbitration award (which is described as plaintiff as the order on the defendant's motion for summary judgment) as Exhibits E and I to the declaration of attorney Alexander G.I. Davies, respectively. (ROA 169.) Exhibit I indicates that the arbitrator was the Hon. Frank J. Ochoa (Ret.).

Subdivision (a) of Code Civ. Proc. § 1286.2 sets forth the grounds for the vacation of an arbitration award. It provides:

Subject to Section 1286.4, the court shall vacate the award if the court determines any of the following:

(1) The award was procured by corruption, fraud or other undue means.

(2) There was corruption in any of the arbitrators.

(3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator.

(4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.

(5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title.

(6) An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision. However, this subdivision does not apply to arbitration proceedings conducted under a collective bargaining agreement between employers and employees or between their respective representatives.

Subdivision (a) of Code Civ. Proc. § 1286.6 sets forth the grounds for the vacation of an arbitration award. It provides:

Subject to Section 1286.8, the court, unless it vacates the award pursuant to Section 1286.2, shall correct the award and confirm it as corrected if the court determines that:

(a) There was an evident miscalculation of figures or an evident mistake in the description of any person, thing or property referred to in the award;

(b) The arbitrators exceeded their powers but the award may be corrected without affecting the merits of the decision upon the controversy submitted; or

	(c) The award is imperfect in a matter of form, not affecting the merits of the controversy. Plaintiff contends that the arbitrator exceeded his powers because he did follow the Court order compelling arbitration of his individual PAGA claims but dismissed them in their entirety even though they claims were timely filed in the arbitration. Plaintiff also contends that the Court erred by failing to rule that he had standing as an "aggrieved employee" under PAGA as previously determined by Labor Commissioner previously determined and issued an award on December 1, 2021 that stated that plaintiff was not timely paid his final wages. In opposing the motion, defendant contends that plaintiff voluntarily dismissed his individual claims except for the PAGA claim before defendant brought its motion to compel arbitration. It contends that, although the Court's order referenced the PAGA claim, plaintiff re-filed his individual claims in the complaint he submitted to AAA for arbitration. Defendant contends that, by the time that these claims were re-asserted by plaintiff, they were untimely under the applicable limitations period. In fact, Court's file shows that, on August 31, 2020, plaintiff filed a request for voluntary dismissal of the personal and class action claims in his first amended complaint without prejudice with the exception of the non-arbitrable cause of action for PAGA and that, on September 11, 2020, the Court entered an order granting this request. (ROAs 33 and 39.) The Court's file also shows that, on July 20, 2022, defendant filed a motion for an order: (1) compelling plaintiff to submit his individual PAGA claim against defendant to binding arbitration; (2) striking any and all allegations that purported to bring PAGA representative claims per the agreement of the parties; and (3) staying all court proceedings against defendants pending resolution of the arbitration. (ROA 104.) The Court's file shows that, on January 13, 2023, the Court granted defendant's motion to compel arbitration of the plaintiff's individual claims and stayed the remainder of the case pending the outcome of the arbitration. (ROA 130.) Plaintiff's Exhibit F is the complaint he filed with AAA. It is signed by plaintiff's counsel on February 8, 2023 and contains the following causes of action: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to permit rest breaks; (5) failure to provide accurate itemized wage statements; (6) failure to pay all wages undue upon separation of employment; and (7) violation of Bus. & Prof. Code § 17200. The arbitration award (plaintiff's Exhibit 1 and defendant's Exhibit 2) is dated November 9, 2025 and shows that the arbitrator dismissed each of the plaintiff's claims with prejudice after he granted summary judgment in favor of defendant. The arbitration award indicates that the parties briefed the motion and that the arbitrator took the matter under submission after holding a hearing on it on August 1, 2025. The arbitration award indicates that the arbitrator found that six of plaintiff's revised causes of action were untimely brought because they were asserted more than three years after his employment ended and that the seventh cause of action was dependent on him prevailing on one of the first six. The arbitration award also indicates that the arbitrator found that the prior assertion of the claims in the complaint filed with the
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		Court “did not thereafter affect a tolling of the Statute of Limitations regarding this claim.” Thus, the arbitration award shows that, contrary to plaintiff’s contention, the arbitrator did consider his individual claims. Also, to the extent that plaintiff contends that he was not aware that defendant had submitted evidence and a separate statement because these documents were not referenced in the submission with the moving papers and was not given an opportunity to refute or rebut them, the record shows that plaintiff filed a written opposition to the motion for summary judgment (plaintiff’s Exhibit N and defendant’s Exhibit 5). Also, as previously noted, the arbitrator’s award states that a hearing was held on the motion for summary judgment and counsel for both parties were present at that hearing. The remainder of plaintiff’s arguments appear to be complaints that the arbitrator made errors of law in his ruling. However, an arbitrator’s decision generally cannot be reviewed for errors of fact or law. <u>Moncharsh v. Heily & Blase</u> (1993) 3 Cal.4th 1, 11. <i>Accordingly, the motion to vacate is denied.</i> The Court sets a CMC for August 6, 2026 at 9:30AM to discuss the status of further proceedings including (1) lifting the stay; (2) Defendant’s plans regarding confirming the arbitration award; (3) the effect of the arbitration award on the representative PAGA case; and (4) ongoing case management and trial setting. The parties shall submit a joint CMC statement at least 10 days in advance of the hearing addressing these along with any other relevant matters. Defendant to give notice.
112	Balt USA, LLC vs. Treadstone Medical LLC 2021-01237081	1.Motion for Summary Judgment and/or Adjudication re: Liquid Embolic Kit (ROA 1582) 2. Motion for Summary Judgment and/or Adjudication re: Tinnitus (ROA 1666) 3. Motion for Summary Judgment and/or Adjudication re: Electrocautery (ROA 1670) <u>Liquid Embolic</u> Defendants Randall Takahashi, David Ferrera, Dawson Le, Treadstone Medical LLC, M4D LLC, Infinity Neuro LLC, Vtail Medical, LLC, Sonorous Neurovascular, Inc., and RC Medical, LLC move for summary adjudication against plaintiff Balt USA, LLC as to the following issues: (1) The liquid embolic kit for peripheral veins had been conceived by Dr. Satoshi Tateshima, and it was not a corporate opportunity that the Defendants had a duty to disclose to Balt (Fourth Cause of Action); (2) The liquid embolic kit for peripheral veins had not been conceived by the Individual Defendants while they were employed by Balt, and had been abandoned, and as a result the Defendants were not contractually obligated to disclose and assign their rights and interests in the liquid embolic kit for peripheral veins to Balt pursuant to their employment agreements (Seventh Cause of Action); and (3) Since Balt does not have a lawful claim to liquid embolic kit for peripheral veins there is no merit to the other causes of action which relate to the liquid embolic glue, i.e., nos. 5-6, 8-10.